

24STCV04924 24STCV04924

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Case Number: 24STCV04924 Hearing Date: August 13, 2026 Dept: 510

No.

12 - Seong Ho Cho v. Keith Ferrazzi, et al.

Defendant KV Construction 1, Inc.'s Motion
for Determination of Good Faith Settlement

Defendant

KV Construction 1, Inc. moves for an order determining the good faith of its settlement with Plaintiff Seong Ho Cho under Code of Civil Procedure section 877.6, subdivision (a).

When

only some of multiple defendants alleged to be jointly liable settle a case, the settling parties may apply to the court for a determination of good faith settlement. (Code Civ. Proc., § 877.6(a).) A determination of good faith “shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Id., subd. (c).)

Any opposing party bears “the burden below to show the settlement amount was ‘so far “out of the ballpark” in relation to’ the [various] factors that the settlement was inconsistent with the equitable objectives of section 877.6.” (Cahill v. San Diego Gas & Electric Co. (2011) 194 Cal.App.4th 939, 967; accord Code Civ. Proc., § 877.6(d).)

After

considering all relevant factors, the Court finds the settlement between Defendant KV Construction 1, Inc. and Plaintiff was made in good faith. In making such a determination, the Court must consider various factors stated in Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499-500. “ ‘Good faith may be found only if there has been no collusion between the settling parties and where the settlement amount appears to be within the “reasonable range” of the settling party’s proportionate share of comparative liability for a plaintiff’s injuries.’ ” (Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 872.)

Defendant KV Construction 1, Inc. settled with Plaintiff for \$312,000 and agreed that a designated witness from Defendant will be available to testify at trial on at least 48 hours’ notice. (Motion, at p. 1; Bednar Decl., ¶ 8.) Defendant states that the settlement “is not the product of collusion nor is it for the purpose of prejudicing or harming any other defendant or cross-defendant.” (Bednar Decl., ¶ 7.) After considering all relevant factors, the Court finds Defendant presents sufficient evidence showing this settlement is within the reasonable range of its potential share of liability.

No other party has asserted a lack of good faith or presented any evidence on that issue. “The party asserting the lack of good faith shall have the burden of proof on that issue.” (CCP § 877.6(d).)

Disposition

Defendant

KV Construction 1, Inc.’s motion for determination of good faith settlement is granted. Under Code of Civil Procedure section 877.6, the Court hereby finds the settlement between Defendant KV Construction 1, Inc. and Plaintiff Seong Ho Cho was made in good faith.